

Visakhapatnam Port Trust (Bunkering of ocean going Vessels) Regulations, 2006

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State of Andhra Pradesh - Act

Visakhapatnam Port Trust (Bunkering of ocean going Vessels) Regulations, 2006

ANDHRA PRADESH

India

Visakhapatnam Port Trust (Bunkering of ocean going Vessels) Regulations, 2006

Rule VISAKHAPATNAM-PORT-TRUST-BUNKERING-OF-OCEAN-GOING-VESSELS-REGULATIONS-2006 of 2006

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Visakhapatnam Port Trust (Bunkering of ocean going Vessels) Regulations, 2006

Published vide Notification No. QADM/LSM/FROB, A.P. Gazette Part-2 (Extraordinary) dated 5.9.2006

Last Updated 24th September, 2019

In exercise of the powers conferred by Sections (1) to (o) of Section 123 of Major Port Trust Act, 1963 (Act, 38 of 1963), the Board of Trustees of Visakhapatnam hereby makes the following Regulations, subject to the approval of the Central Government for Bunkering of Ocean going Vessels and also subject to pre-publication of the said Regulations in Andhra Pradesh Gazette, as required under Section 124 of the said Act, namely:

1.

Short title, extent and commencement.

- (i) These Regulations may be called the Visakhapatnam Port Trust (Bunkering of ocean going Vessels) Regulations, 2006.

(ii)

They shall come into force w.e.f. date of final publication in the Gazette of India.

(iii)

These regulations shall apply to Bunkering of Ocean going vessels and licenced bunker barges within the port limits.

2.

Definitions.

- In these Regulations, unless the context otherwise requires:

(i)

"Act" means Major Port Trust Act, 1963. The Indian Ports Act, 1908 and Merchant Shipping Act, 1958.

(ii)

"Agent" means, agent of the ocean going vessels at whose instance the vessel is calling at the Port of Vishakhapatnam.

(iii)

"ISM Code" means, International Safety Management Code.

(iv)

Master includes any person (except Pilot, Dock Master, Dredging Superintendent, Harbour Master, Deputy Conservator) having command or charge of a ship.

(v)

"Bunkering" means (a) transshipment of bunker oil from bunker vessel to an ocean going vessel (b) transshipment of bunker oil from road tanker to an ocean going vessel and (c) transshipment of bunker oil from oil wharf/jetty to an ocean going vessel/ licensed bunker barge.

(vi)

"Bunker oil" means, inflammable liquids intended for propulsion and auxiliary operation of an ocean going vessel and liquids destined for the lubrication of ship's engine.

(vii)

"Deputy Conservator" means, the Deputy Conservator of the Board, the Head of the Department appointed by the Central Government under the provisions of Major Port Trusts Act, 1963.

(viii)

"Owner" means, in relation to any vessel making use of any Port includes and part-owner, charterer, consignee or mortgagee in possession thereof.

(ix)

Ocean going in relation to vessel means, a vessel proceeding to sea beyond inland waters or beyond waters declared to be smooth or partially smooth water by the Central Government by notification in the Official Gazette.

(x)

The words that have not been specifically defined in these Regulations shall have the same meaning, as defined in the respective Acts.

3.

Responsibility of the Agent.

- It shall be the responsibility of the Agent of the ocean going vessel to make an application to the Deputy Conservator for grant of permission for bunkering in prescribed form as per Annexure -1.

4.

Duty of the Deputy Conservator.

- (i) the Deputy Conservator will grant the permission for bunkering in the prescribed form as per Annexure-2 after assessing the situation, subject to the compliance of the precautions enumerated in the Regulations.

(ii)

The Deputy Conservator or his authorised representative may inspect the bunkering operations at any time and call for relevant information.

5.

Responsibility of the Master.

- (i) The Master of the ship involved in bunkering shall ensure that bunkering shall only take place, provided:

(a)

Application of the intention to bunker is given to the Deputy Conservator well in advance, stating the place, type of bunker oil to be transshipped and the probable beginning time of the bunkering.

(b)

All questions of bunker checklist attached to this Regulations as Annexure-3 . & 4 are answered truthfully.

(ii)

The Master of an ocean going vessel shall not begin bunkering, unless he has ensured that;

(a)

The scuppers/flushing gates, as far as possible, are well closed.

(b)

Idle bunker pipes are well blanked.

(c)

The bunker hoses are well suspended.

(d)

The bunker connection is provided with proper gaskets.

(e)

Every bolt-hole in bunker pipe connection flanges is provided with a well tightened bolt.

(f)

There is sufficiently large drip tray/ save all under the bunker pipe connections and they have been emptied out and plugged.

(g)

The checklist as per Annexure-3 & 4 to be filled up and exchanged.

(iii)

The Master of the bunker vessel shall not begin bunkering, unless he has ensured that:

(a)

The bunker vessel is well moored.

(b)

The bunker hoses are in a good state with valid test certificate.

(c)

The bunker hoses have sufficient play.

(d)

The bunker hoses are well suspended.

(e)

The bunker connection is provided with proper gaskets.

(f)

Every bolt hole in bunker pipe connection flanges is provided with well tightened bolt.

(iv)

The Master of a ship involved in bunkering shall ensure that the conditions mentioned in (ii) & (iii) above respectively remain fulfilled during the entire bunkering process.

(v)

If the Master of the ship involved in bunkering cannot ensure the fulfilment of the conditions mentioned in (ii) & (iii) above respectively, he shall cease bunkering immediately.

(vi)

The Master shall take all precautions to avoid spillage and fire risks which are as follows;

(a)

Sealing of all deck scuppers, over board discharge on board.

(b)

"B" flag/red light to be exhibited.

(c)

Communication between ship and bunkering barge to be ensured.

(d)

No smoking signs to be exhibited.

(e)

fire fighting appliances to be kept in readiness.

(f)

Approved absorbent material/sand in readiness including drip trays.

(g)

Any other precautions that are required under ISM Code and ordinary practice of seamanship.

(h)

No HOT WORK to be carried out on board vessels.

(i)

In case of any pollution, the same shall be intimated to the port control immediately on VHF CH-16 or phone 2562135 and 2875568 or Shipping Assistant on VHF Ch. 16 or Phone 2563029/2562791 or 2875505.

(j)

In case of pollution of port waters either accidentally or intentionally the Master/Commanding Officer/ Owners of the vessel is liable, in addition to the latest amendment, to penal charges as per /Chapter IV Section 21(2) of Indian Ports Act, 1908 and Section 356 (C) of Merchant Shipping Act and payment of cleaning charges of Port waters without any upper limit.

(k)

The penal charges/cleaning charges will be levied by the port, as determined by the Chairman/ Dy. Conservator.

6.

Power of Chairman/Dy. Conservator to order bunkering operations to cease.

- If the conditions mentioned in these Regulations are not complied with, the Chairman/Dy. Conservator of the Board shall have power to order bunkering operations to cease:

7.

Interpretation.

- If any question or doubt arises as to the interpretation of these regulations, the same shall be decided by the Board.

Annexure -I

Draft Application for Bunkering

From The Agent

M/s.....

To

The Deputy Conservator,
Visakhapatnam Port Trust.

Sir,

Sub:- Application for bunkering for the vessel M.V./M.T.....Scheduled to be berthed at.....on.....

Permission is requested to take bunker,

(a)

Heavy Oil.....Tons

(b)

Diesel Oil.....Tons

(c)

Lub. Oil.....Ltrs.

From.....(name of the bunker barge/oil wharf/jetty/name of the owner or operator of the tanker).

I hereby declare that all the conditions of VPT bunkering regulations will be complied with during bunkering operations and also any other precautions required by ISM Code and the ordinary practice of seamanship during bunkering will be taken to avoid oil pollution or any other accident. In the event of any oil pollution or damage, I agree (on behalf of ocean going vessel) to pay the necessary fine/cleaning charges or the cost of any other incidental damage to the port property.

Annexure - II

Draft Permission Letter

No. DC/N/Bunkers

Dated

From
The Deputy Conservator.
Visakhapatnam Port Trust.
To

.....
.....

Sir,
Sub:- Permission for bunkering - Reg.
Ref:- Your letter.....

Permission is hereby accorded for transshipment of bunker oil from:

(a)
Bunker vessel m.v./m.t.....to your vessel m.v./m.t.....

(b)
Road tankers to your vessel m.v./m.t.....

(c)
Oil wharf/Jetty to your vessel m.v./ m.t.....

Subject to compliance of the conditions as laid down in our VPE (Bunkering) Regulations.

Deputy Conservator

Copy to: The Traffic Manager/VPT.

Copy to: The Commandant, CISF/VPT.

Annexure - III

Checklist Sea - Going Vessel

Name of Master

Place:

Name of Sea-Going Vessel

Berth:

Name of Bunker Vessel:

Starting time of

bunkering:

.....Hrs Date:

1. Who measured the contents of the bunker tanks:

2. The measurement was:

Tank

tonnes

residual capacity

Tank

tonnes

residual capacity

Tank

tonnes

residual capacity

Tank

tonnes

residual capacity

3. How much bunker oil will, in order of transshipment be transshipped and what is the agreed pumping rate:

Fuel

m3 -

actual grade:

tank

p-rate

m3-ph.

Fuel
m3 -
actual grade;
tank
p-rate
m3-ph.
Fuel
m 3 -
actual grade;
tank
p-rate
m3-ph.
Fuel
m 3 -
actual grade;
tank
p-rate
m3-ph.
Lubrication oil
m3-
actual tank p-rate
m3-ph.
Lubrication oil
m3-
actual tank p-rate
m3ph.

4. What are the means of communication between the ships:

5. Who is responsible for the communication with the bunker vessel:

Name:

Position:

6. How often are the contents of the bunker tanks measured:

Every.....minutes

7. Who is responsible for the measurements referred to in question No. 6.

Name

Position:

8.

Who exercises supervision and takes immediate action in case of malfunction: Name:

Position:

Signature

Place:

Name and

position:

Date

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